

11	Smith vs. Romero 30-2024-01374547	<u>Motion to Consolidate</u> Defendants Damian Alberto Romero's and Raul Mendenzdelara's Motion to Consolidate Cases is GRANTED in part and DENIED in part. The following cases shall be CONSOLIDATED for purposes of trial only: 1. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547; 2. <i>Bryan Nguyen v. Damian Alberto Romero, et al.</i>, Case No. 30-2025-01465733; 3. <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287; 4. <i>Chantal Abril Hernandez, et al. v. Damian Alberto Romero</i>, Case No. 2025-01499182. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547 shall be the lead case. The court VACATES the Case Management Conference in <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287. The court SETS a Jury Trial for November 9, 2026 at 10:30 a.m. in Department N15 in <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-01466287. The estimated length of trial: 7-10 Days Parties and counsel are ordered not to schedule any other matters at the same time as the anticipated trial. Parties and counsel shall abide by Local Rule 317 prior to trial. The court clerk is ordered to file a copy of the minute order with this ruling in all of the above cases (See Cal. Rules of Court, rule 3.350(c).) <u>Pending Motion</u> Defendants Damian Alberto Romero and Raul Mendenzdelara (Moving Defendants) move to consolidate the following cases for all purposes: 1. <i>McKayla Smith v. Damian Alberto Romero, et al.</i>, Case No. 30-2024-01374547; 2. <i>Bryan Nguyen v. Damian Alberto Romero, et al.</i>, Case No. 30-2025-01465733; 3. <i>Ashley Soriano v. Damien Alberto Romero, et al.</i>, Case No. 2025-
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01466287;

4. *Chantal Abril Hernandez, et al. v. Damian Alberto Romero*, Case No. 2025-01499182.

Standard for Consolidation

"When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions". (Code Civ. Proc., § 1048, subd. (a).) The court may also "order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (*Ibid.*)

California Rules of Court Rule 3.350 sets forth the requirements for a motion to consolidate:

(1) A notice of motion to consolidate must:

- (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record;
- (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and
- (C) Be filed in each case sought to be consolidated.

(2) The motion to consolidate:

- (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case;
- (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and
- (C) Must have a proof of service filed as part of the motion.

(Cal. Rules of Court, rule 3.350(a).)

The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures), and to avoid the substantial danger of inconsistent adjudications (i.e., different results when matters are tried before different juries or judges). (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:340 (The Rutter Group 2012).)

There are two types of consolidation, a complete consolidation which results in a single action and a consolidation of separate actions for trial. (See *Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396.)

When cases are consolidated completely, which is usually ordered where the parties are identical and the causes could have been joined, the